Indian Citizenship Case Law: Applicant-Focused Precedent Handbook

Birth • Descent • Registration • Naturalisation • Foreign Citizenship • OCI • Delays • Deprivation • Special Frameworks

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Plain-language legal reference. Verify the current official text, rules, notifications and case status before relying on this guide for an application or legal proceeding.

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Important note

This handbook summarizes selected Indian citizenship judgments and orders for research. A case summary is not the judgment. Always read the original decision before relying on a proposition in litigation or a citizenship application. Case status can change through review, appeal, clarification or later legislation.

Case selection principle

The cases below are organized around applicant problems rather than merely by court or year. The goal is to answer: what was the factual problem, what statutory provision mattered, what did the court decide, and how should an applicant use the decision without overgeneralizing it?

Part III — Citizenship by Birth

Case 3.1 — Rinzin Dolma & connected matters

Court: Delhi High Court **Date:** 13 April 2017
Citation / Case No.: W.P.(C) 254/2017 and connected petitions
Key provisions: Citizenship Act, Section 3; Passport Act

Facts

The petitioners were born in India at different dates and claimed citizenship under Section 3. The dispute arose when passports were sought and citizenship was questioned.

Legal issues

1. Whether persons falling within Section 3 could be treated as Indian citizens for passport purposes.
2. How the date of birth and the relevant version of Section 3 affected the claim.

Decision / holding

The Court held that the petitioners covered by Section 3 were citizens and directed that passports be issued subject to the ordinary checks and formalities under passport law.

Applicant significance

If your claim is citizenship by birth, the case shows why the exact date of birth and the statutory version applicable to that date are central. It also shows that citizenship status and passport issuance are related but distinct questions.

Limits of the case

The decision concerned the specific petitioners and their statutory facts. It should not be read as saying every person born in India is a citizen irrespective of date or parental status.

Primary source

https://indiankanoon.org/doc/7975822/

Part IV — Citizenship by Descent and Foreign Citizenship

Case 4.1 — Union of India v. Pranav Srinivasan

Court: Supreme Court of India **Date:** 18 October 2024
Citation / Case No.: 2024 INSC 792; Civil Appeal No. 5932 of 2023 with W.P.(C) No. 123 of 2024
Key provisions: Constitution Articles 8–11; Citizenship Act Sections 5, 8 and 9

Facts

Pranav Srinivasan was born in Singapore in 1999. His parents, born in India, had acquired Singapore citizenship before his birth. He later sought resumption of Indian citizenship under Section 8(2). The Supreme Court considered whether the statutory route permitted resumption and whether other constitutional/statutory routes automatically applied.

Legal issues

1. Whether Section 8(2) permitted resumption on the facts.
2. Whether Article 8 or Section 5(1)(b) independently created the claimed entitlement.
3. How strictly the statutory eligibility language should be applied.

Decision / holding

The Supreme Court set aside the High Court decisions and held that the claimant had not resumed Indian citizenship under Section 8(2). It emphasized that citizenship cannot be conferred by departing from the plain statutory requirements. The judgment left open the possibility of applying under Section 5(1)(f), subject to its twelve-month ordinary-residence requirement and the Central Government's statutory relaxation power in special circumstances.

Applicant significance

For a person born abroad to parents who later acquired foreign citizenship, this is a major warning against relying only on ancestral connection. Identify the exact statutory route and satisfy its conditions.

Limits of the case

The case is fact-specific. It does not establish a universal rule for every child born abroad; Section 4, the date of birth, parental citizenship at birth, registration requirements and Section 9 issues must be separately examined.

Primary source

https://api.sci.gov.in/supremecourt/2023/21809/21809_2023_6_1502_56499_Judgement_18-Oct-2024.pdf

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Case 4.2 — Izhar Ahmad Khan v. Union of India

Court: Supreme Court of India **Date:** 16 February 1962
Citation / Case No.: 1962 Supreme Court judgment
Key provisions: Constitution Article 9; Citizenship Act Section 9(2); Citizenship Rules evidence provisions

Facts

The petitioners challenged provisions dealing with determination of foreign citizenship and the statutory consequences of voluntary acquisition of foreign citizenship.

Legal issues

1. Whether Parliament could provide an evidentiary framework for determining acquisition of foreign citizenship.
2. Whether Section 9's statutory scheme was constitutionally valid.

Decision / holding

The Supreme Court upheld the relevant framework. Section 9 provides that voluntary acquisition of foreign citizenship results in cessation of Indian citizenship, while Section 9(2) provides for determination of questions concerning whether, when or how foreign citizenship was acquired.

Applicant significance

For applicants dealing with dual-nationality or foreign-passport questions, this is a foundational authority showing that the foreign-citizenship question is governed by the Citizenship Act and prescribed evidentiary rules.

Limits of the case

It is an old constitutional decision. Current rules and amendments must still be checked for the precise procedure and evidence.

Primary source

https://supremecourtindia.in/judgments/supreme-court/1962/izhar-ahmad-khan-vs-union-of-india-1962-02-16/

Case 4.3 — Reena Chandy v. Union of India

Court: Kerala High Court **Date:** 7 September 2026
Citation / Case No.: WP(C) No. 28670 of 2024; 2026:KER:67947
Key provisions: Citizenship Act Section 4 and Section 9

Facts

The petitioner claimed citizenship by descent based on an Indian father at the time of her birth in 1953. A foreign passport/citizenship issue arose because she had obtained Singapore citizenship while a minor.

Legal issues

1. Whether the applicant was a citizen by descent under Section 4.
2. Whether acquisition of foreign citizenship while a minor could be treated as voluntary acquisition for Section 9 purposes.
3. Whether the Central Government had applied the correct legal test to the status determination.

Decision / holding

The High Court set aside the challenged determination and directed reconsideration, noting the finding that the petitioner was covered by Section 4 and that acquisition of Singapore citizenship while she was a minor could not simply be treated as her voluntary act.

Applicant significance

This case is useful when the foreign-citizenship event occurred through parents while the claimant was a minor. The factual timeline and proof of how foreign citizenship was acquired become critical.

Limits of the case

It is a High Court decision on the particular record and may be subject to further proceedings. Check current appellate status before relying on it.

Primary source

https://indiankanoon.org/docfragment/139703340/?formInput=+indian+citizenship+act+++doctypes%3A+sc%2Chighcourts+year%3A+2026

Part V — Registration, Residence and Naturalisation

Case 5.1 — Shantanu Prakash v. Union of India

Court: Delhi High Court **Date:** 30 March 2026
Citation / Case No.: WP(C) 10428/2024
Key provisions: Citizenship Act Section 5(1)(a)

Facts

The petition challenged rejection of a citizenship application under Section 5(1)(a). The stated reasons included adverse remarks based on FIRs reported by security and police agencies.

Legal issues

1. Whether the rejection decision was legally sustainable on the reasons recorded.
2. How the adverse police/security material affected the citizenship application.

Decision / holding

The order records the challenge to the rejection and the statutory setting. The case is particularly relevant to the interaction between Section 5 applications and adverse police/security material.

Applicant significance

Use this case when the core issue is a rejection based on criminal/security reports. The exact order and subsequent proceedings should be read before drawing a general rule.

Limits of the case

The existence of FIRs does not by itself create a universal statutory bar in every citizenship category; the decision-maker's reasons, the applicable category and the procedural history matter.

Primary source

https://indiankanoon.org/doc/168928442/

Case 5.2 — Munna Mohammed Grouse v. Union of India

Court: High Court of Karnataka **Date:** 22 April 2026
Citation / Case No.: 2026 High Court order
Key provisions: Citizenship Act Section 5(1)(f); Citizenship Rules

Facts

The petition concerned an applicant relying on an earlier Indian-citizen parent and ordinary residence in India. The government argued that the Section 5(1)(f) requirements, the applicable form, undertaking and oath had to be satisfied.

Legal issues

1. What statutory conditions applied to the registration claim.
2. Whether humanitarian/family considerations could replace statutory eligibility.

Decision / holding

The order records the statutory eligibility framework and the government's position that the applicant had to satisfy the prescribed Section 5 route and Rules. It is useful primarily as an example of the court examining the statutory route rather than treating family hardship as an automatic substitute for eligibility.

Applicant significance

Applicants should identify the exact Section 5 clause before relying on family relationships or humanitarian arguments.

Limits of the case

Read the full order and subsequent history before treating it as a definitive precedent on the merits.

Primary source

https://indiankanoon.org/doc/18831002/

Part VI — OCI

Case 6.1 — Anushka Rengunthwar v. Union of India

Court: Supreme Court of India **Date:** 3 February 2023
Citation / Case No.: (2023) 11 SCC 209
Key provisions: Citizenship Act Section 7B; OCI notification dated 4 March 2021

Facts

The case concerned OCI cardholders and admission/education-related privileges under the statutory OCI framework.

Legal issues

1. Whether OCI holders were entitled to parity with Indian citizens in the relevant educational-admission context.
2. How Section 7B and the governing notification defined the scope of OCI privileges.

Decision / holding

The Supreme Court treated OCI as a statutory status distinct from citizenship and upheld the policy framework that did not grant OCI holders automatic parity with Indian citizens for the relevant admission issue.

Applicant significance

OCI should be analyzed by the precise statutory right or notification involved. OCI status does not convert into citizenship and does not automatically create every right available to citizens.

Limits of the case

The decision concerns the particular notification and subject matter. Check later OCI notifications for current entitlements.

Primary source

https://api.sci.gov.in/pdfdate/index1.php?dno=180052021&dt;=2023-02-03&filename;=supremecourt%2F2021%2F18005%2F18005_2021_12_1501_41507_Judgement_03-Feb-2023.pdf

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Case 6.2 — Khalid Jahangir Qazi through his Power of Attorney v. Union of India

Court: Delhi High Court **Date:** 11 August 2026
Citation / Case No.: LPA 1239/2024 with connected matters
Key provisions: Citizenship Act Section 7D; Foreigners Act

Facts

The litigation concerned cancellation of OCI status and subsequent action under the foreigner-control framework. The court considered the distinct statutory position of OCI cardholders and the hearing safeguard in Section 7D.

Legal issues

1. Whether an OCI holder remains subject to foreigner law despite OCI privileges.
2. What procedural protection Section 7D provides before cancellation.
3. How OCI-specific safeguards interact with separate action under foreigner law.

Decision / holding

The judgment emphasized that OCI cardholders are not Indian citizens and can remain subject to foreigner law. It also addressed the statutory requirement of a reasonable opportunity of hearing before cancellation under Section 7D and the relationship between OCI cancellation and foreigner-law action.

Applicant significance

For an OCI holder facing cancellation or related immigration action, identify each statutory proceeding separately and check whether the applicable procedural safeguards were followed.

Limits of the case

This is a High Court appellate decision and the litigation may continue. Check current appellate status and later orders.

Primary source

https://indiankanoon.org/doc/62109211/

Case 6.3 — John Robert Roughton III v. Union of India

Court: Delhi High Court **Date:** 28 March 2025
Citation / Case No.: 2025 High Court decision
Key provisions: Citizenship Act Section 7B; OCI notification

Facts

The case concerned the scope of OCI privileges and the activities for which special permission may be required.

Legal issues

1. What privileges are conferred on OCI cardholders.

2 Whether an OCI holder can rely on the status as if it were Indian citizenship.

Decision / holding

The Court discussed the statutory privilege framework, including multiple-entry lifelong visa and activities requiring special permission under the relevant notification.

Applicant significance

The case is useful for understanding the difference between OCI privileges and unrestricted citizen rights.

Limits of the case

Use the current OCI notification rather than assuming the 2021 list remains unchanged in every detail.

Primary source

https://indiankanoon.org/doc/139609486/

Part VII — Administrative Delay, Rejection and Remedies

Case 7.1 — Gurmeet Singh Bains v. Union of India

Court: Punjab & Haryana High Court **Date:** 30 August 2022
Citation / Case No.: CWP-13636-2022
Key provisions: Citizenship Act Section 5(1)(a); Article 226

Facts

The petitioner, a Kenyan citizen, had a pending citizenship application. During the delay, the validity of his Kenyan visa/passport became an issue, and he sought directions concerning processing of his citizenship application and related immigration hardship.

Legal issues

1 Whether the High Court could intervene in the circumstances of a pending citizenship application.

2 How delay in citizenship processing interacted with the applicant's foreign passport/visa position.

Decision / holding

The case illustrates the use of Article 226 in a citizenship-processing dispute and the practical consequences that delay can create for a foreign applicant.

Applicant significance

For delayed applicants, preserve evidence of the pending application and explain the concrete legal/practical consequence of delay rather than merely alleging inconvenience.

Limits of the case

The court's powers depend on the specific facts and statutory duties. A writ does not automatically compel grant of citizenship.

Primary source

https://indiankanoon.org/doc/168654521/

Case 7.2 — Shantanu Prakash v. Union of India

Court: Delhi High Court **Date:** 30 March 2026
Citation / Case No.: WP(C) 10428/2024
Key provisions: Citizenship Act Section 5(1)(a); Article 226

Facts

The applicant challenged a rejection of citizenship based on adverse police/security information.

Legal issues

1. Whether the administrative rejection was supported by the recorded reasons.
2. What role adverse security information played in the decision.

Decision / holding

The order demonstrates a judicial review setting in which the legality of the citizenship authority's rejection is challenged rather than the court simply assuming the role of the original decision-maker.

Applicant significance

Applicants challenging rejection should obtain the actual rejection order, identify the statutory basis, and attack the legally relevant defect rather than merely restating eligibility.

Limits of the case

The cited order should be read in full, including any subsequent order or appeal.

Primary source

https://indiankanoon.org/doc/168928442/

Part VIII — Deprivation and Citizenship-Status Disputes

Case 8.1 — Nageshwar Mishra v. Union of India

Court: Allahabad High Court **Date:** 2 September 2020
Citation / Case No.: 2020 High Court decision
Key provisions: Citizenship Act Section 10; Constitution Articles 5–11

Facts

The dispute concerned whether the statutory deprivation mechanism under Section 10 could be used against a person whose citizenship arose by birth.

Legal issues

1. Who falls within the statutory class that can be deprived under Section 10.
2. Whether Section 10 could be used merely because a person was born in India.

Decision / holding

The Court emphasized that Section 10 applies to the categories of citizens specified by the statute, including citizens by naturalisation and specified registration/constitutional categories. It rejected treating Section 10 as a general deprivation power over every Indian citizen.

Applicant significance

For citizenship-status disputes, identify the original legal source of citizenship before analyzing Section 10.

Limits of the case

The case is a High Court decision and should be read with the current statutory text and later authority.

Primary source

https://indiankanoon.org/doc/43163736/

Case 8.2 — Ramesh Singh v. Smt. Sonia Gandhi

Court: Allahabad High Court **Date:** 11 July 2016
Citation / Case No.: 2016 High Court decision
Key provisions: Citizenship Act Sections 5, 9 and 10

Facts

The litigation involved a challenge to the citizenship status of a person who had been registered as an Indian citizen. The court considered whether it could independently conduct a citizenship inquiry while the registration order remained operative.

Legal issues

1. Whether a court could simply disregard an existing citizenship registration order.
2. What statutory mechanisms existed for termination or deprivation.

Decision / holding

The Court held that, so long as the registration order stood and had not been cancelled/withdrawn or otherwise displaced under the statutory mechanisms, the court could not simply treat the person as not being a citizen on its own.

Applicant significance

Citizenship status should be attacked through the legally prescribed mechanism. An applicant or challenger should identify the operative certificate/order and the statutory route for disputing it.

Limits of the case

The case concerns a specific election-related challenge and should not be generalized beyond the procedural point it addresses.

Primary source

https://indiankanoon.org/doc/149875120/

Part IX — Section 6A / CAA Litigation

Case 9.1 — In Re: Section 6A of the Citizenship Act, 1955

Court: Supreme Court of India **Date:** 17 October 2024 final decision
Citation / Case No.: W.P.(C) No. 274/2009 and connected proceedings
Key provisions: Citizenship Act Section 6A; Constitution

Facts

The litigation challenged the constitutional validity and operation of Section 6A, the Assam Accord-related citizenship framework.

Legal issues

1. Whether Section 6A was constitutionally valid.
2. How the statutory citizenship framework interacted with the Assam Accord and constitutional provisions.

Decision / holding

The Supreme Court's 2024 judgment addressed the constitutional challenge to Section 6A and is a major authority for applicants whose facts fall within the Assam-specific framework.

Applicant significance

Do not apply Section 6A as a generic citizenship route. It is a specialized statutory framework with date-specific migration categories.

Limits of the case

The judgment is constitutionally significant but does not replace the need to examine the applicant's individual date, residence and documentary facts.

Primary source

https://www.sci.gov.in/hi/%E0%A4%A4%E0%A4%B0%E0%A5%8D%E0%A4%95-%E0%A4%85%E0%A4%A8%E0%A5%81%E0%A4%B2%E0%A4%BF%E0%A4%AA%E0%A4%BF-2/

9.2 — Section 6B: current administrative litigation note

Section 6B implementation is more procedure-sensitive than many older citizenship categories because the 2024 Rules and subsequent 2026 changes created specific administrative arrangements. As of August 2026, MHA's current materials show a Collector-centered process for Section 6B applications in Gujarat, Rajasthan, Punjab, West Bengal, Assam except tribal areas, Tripura except tribal areas, and the Union Territories of Jammu and Kashmir and Ladakh. This is a current administrative rule/order rather than a court precedent, so it belongs in a case-law handbook as a cross-reference rather than being presented as a judicial holding.

MHA current Acts/Rules page

Part X — Master Case Table and Statutory Index

Case	Court / year	Primary issue	Main provision
Rinzin Dolma	Delhi HC / 2017	Birth citizenship + passport	§3
Pranav Srinivasan	SC / 2024	Foreign-born person; resumption	§§5,8,9
Izhar Ahmad Khan	SC / 1962	Foreign citizenship / evidence	§9
Reena Chandy	Kerala HC / 2026	Descent + minor foreign citizenship	§§4,9
Shantanu Prakash	Delhi HC / 2026	Rejection + security/FIRs	§5
Munna Mohammed Grouse	HC / 2026	Registration + ordinary residence	§5
Anushka Rengunthwar	SC / 2023	OCI privileges	§7B
Khalid Jahangir Qazi	Delhi HC / 2026	OCI cancellation + hearing	§7D
John Robert Roughton III	Delhi HC / 2025	OCI privileges	§7B
Gurmeet Singh Bains	P&H HC / 2022	Delay / Article 226	§5
Nageshwar Mishra	Allahabad HC / 2020	Deprivation scope	§10
Ramesh Singh	Allahabad HC / 2016	Existing citizenship order	§§5,9,10
In Re Section 6A	SC / 2024	Assam Accord framework	§6A

Statutory index

Provision	Use this handbook for
Section 3	Rinzin Dolma — citizenship by birth and passport
Section 4	Pranav-related descent questions; Reena Chandy
Section 5	Pranav; Shantanu Prakash; Munna Mohammed Grouse; Ramesh Singh
Section 6	Naturalisation framework; current Rules
Section 6A	In Re Section 6A
Section 6B	Current MHA 2024/2026 implementation materials
Section 7A–7D	Anushka Rengunthwar; Khalid Jahangir Qazi; Roughton
Section 8	Pranav Srinivasan
Section 9	Izhar Ahmad Khan; Pranav; Reena Chandy
Section 10	Nageshwar Mishra; Ramesh Singh
Article 226	Gurmeet Singh Bains; Shantanu Prakash

Applicant problem index

If your problem is...	Start with
Born in India / passport denied	Rinzin Dolma
Born abroad / Indian parent	Section 4 + Pranav / Reena Chandy
Foreign citizenship or foreign passport	Izhar Ahmad Khan + Section 9
Citizenship registration rejected	Shantanu Prakash / Munna Mohammed Grouse
OCI cancellation	Khalid Jahangir Qazi
OCI educational privilege	Anushka Rengunthwar
OCI work/permission issue	John Robert Roughton III + current OCI notification
Application delayed	Gurmeet Singh Bains
Deprivation question	Nageshwar Mishra
Existing citizenship certificate challenged	Ramesh Singh
Assam Accord citizenship issue	In Re Section 6A

Source discipline

For current law, prioritize MHA/India Code/Gazette material. For case law, prioritize the Supreme Court or the relevant High Court's official judgment/order portal. Secondary repositories such as Indian Kanoon are useful for discovery and text access but should not replace verification against the original judgment when the case is legally important.

Companion document

Use PDF-1 to determine the legal route and application workflow. Use this PDF-2 to investigate the judicial decisions relevant to the specific problem. The two documents are designed to be read together.